CIMB

i*Trade@CIMB

Individual

ACCOUNT APPLICATION FORM

Name of Applicant : _____

(also referred to herein as Applicant, I, me or my)

To be completed by CIMB		
Type of Account	**Client Code**	**CDS Account Number**
☐ Direct Trading Account		0 6 5 - -
☐ Securitised Trading Account- Direct		0 6 5 - -
☐ Securitised Trading Account- Nominee		0 6 5 - -
Remarks:		

CIMB INVESTMENT BANK BERHAD (18417-M)

(A PARTICIPATING ORGANISATION OF BURSA MALAYSIA SECURITIES BERHAD)

Principal Office : 10th Floor, Bangunan CIMB Jalan Semantan Damansara Heights 50490 Kuala Lumpur Malaysia
Telephone **(603) 2084 8888** Facsimile **(603) 2084 8899**

Correspondence Address : 9th Floor, Commerce Square Jalan Semantan Damansara Heights 50490 Kuala Lumpur Malaysia
Telephone **(603) 2084 9999** Facsimile **(603) 2084 9888**

Branch Offices

Penang : Ground Floor Suite 1.01 Menara Boustead Penang No. 39, Jalan Sultan Ahmad Shah 10050 Penang Malaysia
Telephone **(604) 238 5900** Facsimile **(604) 229 1616**

Kuching : Aras 1 (Utara) Wisma STA No. 26, Jalan Datuk Abang Abdul Rahim 93450 Kuching Malaysia
Telephone **(6082) 358 688** Facsimile **(6082) 358 689**

Kota Kinabalu : 1st & 2nd Floor Central Building Jalan Sagunting 88000 Kota Kinabalu Sabah Malaysia
Telephone **(6088) 328 878** Facsimile **(6088) 328 900**

Melaka : Ground, 1st & 2nd Floor No. 191, Taman Melaka Raya Off Jalan Parameswara 75000 Melaka Malaysia
Telephone **(606) 289 8800** Facsimile **(606) 289 8810**

Website : Group : **www.cimb.com** Internet Trading : **www.itradecimb.com**

GUIDE TO COMPLETE THE APPLICATION FORM

Follow these simple steps to open an Individual Trading Account with CIMB Investment Bank Berhad (also referred to herein as CIMB, you or your Company)**:**

1. Complete all applicable fields of the Individual Account Application Form (Part A to H and Part L to M). Please type or write using **BLOCK LETTERS**. Any amendments made must be legible and countersigned by the applicant.

2. The completed form must be returned together with the following supporting documents:

   (a) 2 copies of NRIC/Passport/Armed Forces or Police Personnel/Authority Card (both sides).

   (b) 1 copy of latest Bank Statement/Payslip/EA Form/Income Tax Return Form.

3. In addition to the opening of an Individual Trading Account with CIMB, the applicant shall be required to open a Central Depository Securities ("CDS") Account with Bursa Depository Sdn Bhd by completing a separate set of application form (Form FMN010) and submitting the relevant documents as stated in the Form FMN010.

4. Applicant residing outside Malaysia is required to arrange for a Notary Public, or in countries that do not have a Notary Public, advocates and solicitors or officers authorised by a licenced stockbroking Company with a recognised stock exchange; or authorised officer of a Malaysian Embassy or High Commission or Consulate to authenticate the individual Account Application Form, Form FMN010 and the photo copy of documents mentioned in 2(a) and 2(b).

5. For transactions in US securities through CIMB, the applicant is required to complete a US tax declaration form.

Important Notes:

1. Please read the terms and conditions in the accompanying pages.

2. The application herein is subject to the approval of CIMB and CIMB reserves the right to reject the application without giving any reasons

A. ACCOUNTS THAT I NEED

✓ **Tick where applicable**

Type of Broking:

☐ Conventional Broking ☐ Islamic Broking

Type of Account:

☐ Direct Trading Account ☐ Securitised Trading Account - Direct ☐ Securitised Trading Account - Nominee *(applicable if client wishes to apply for an account with CIMSEC Nominees)*

YES, I wish to apply for the following facilities:-

☐ Online Trading i*Trade@CIMB ☐ Cross Border Securities Trading

B. PERSONAL DETAILS

Name (as per NRIC/Passport) _____

New NRIC No. ___ - ___ - ___ Old NRIC /Passport No. _____

Gender ☐ Male Female Nationality ☐ Malaysian ☐ Others _____

Residential Status ☐ Resident Non-Resident Bumi Status ☐ Bumiputra ☐ Non-Bumiputra

Marital Status ☐ Single ☐ Married ☐ Others _____ Date of Birth _____ (dd/mm/yyyy)

Registered Address (as per NRIC/Passport) _____

Postcode _____

Mailing Address (If differs from the above) _____

Postcode _____

Home Telephone No. _____ Handphone No. _____

E-mail Address _____ Home Fax No. _____

C. EMPLOYMENT DETAILS

Employment Status ☐ Employed ☐ Self Employed ☐ Others _____ (Please specify)

Name of Employer/ Firm / Business _____

Nature of Business _____ Registration No. (If own business) _____

Designation/ Occupation _____ Years in Employment/Business _____

Office/Business Address _____

Postcode _____

Office Telephone No. _____ Office Fax No. _____

D. FINANCIAL INFORMATION

Bank/Branch	Account Number	Account Type	Credit Line (If applicable)

Gross Annual Income ☐ Below RM12,000 ☐ RM12,000-RM24,000 ☐ RM24,001-RM36,000 ☐ RM36,001-RM48,000 ☐ RM48,001-RM60,000 ☐ RM60,001-RM100,000 ☐ RM100,001-RM300,000 ☐ Above RM300,000

Estimated Networth ☐ Below RM50,000 ☐ RM50,000- RM100,000 ☐ RM100,001- RM200,000 ☐ RM200,001 - RM500,000 ☐ RM500,001 - RM1,000,000 ☐ Above RM1,000,000

Source of Wealth/Funds ☐ Savings ☐ Salary ☐ Business Income ☐ Directorship ☐ Rental Income ☐ Investment Income ☐ Inherited Wealth ☐ Others _____

E. PARTICULARS OF SPOUSE (IF MARRIED) OR NEXT OF KIN (IF NOT MARRIED)

Name (as per NRIC/Passport) _____ Relationship with Applicant _____

New NRIC No. ☐☐☐☐☐☐ - ☐☐ - ☐☐☐☐ Old NRIC/Passport No. ☐☐☐☐☐☐☐☐☐☐☐☐

Employment Status ☐ Employed ☐ Self Employed ☐ Others _____ (Please specify)

Name of Employer / Firm / Business _____ Designation/Occupation _____

Office / Business Address _____

_____

_____ Postcode _____

Telephone No. _____ Handphone No. _____

Gross Annual Income ☐ Below RM12,000 ☐ RM12,000-RM24,000 ☐ RM24,001-RM36,000 ☐ RM36,001-RM48,000

☐ RM48,001-RM60,000 ☐ RM60,001-RM100,000 ☐ RM100,001-RM300,000 ☐ Above RM300,000

F. INVESTMENT OBJECTIVE & EXPERIENCE

Investment Objective ☐ Short Term ☐ Long Term ☐ Dividend ☐ Capital Growth

Risk Tolerance ☐ Aggressive ☐ Moderate ☐ Conservative ☐ Interest

Investment Experience (1) Equities _____ year (s) (2) Futures _____ year (s)

G. PARTICULARS OF RELATED OR CONNECTED PERSONS OR ACCOUNTS

Does the Applicant have trading account with other brokers? ☐ Yes ☐ No

If yes, please specify Name of Broker _____

Is the Applicant related to any Staff / Director / Dealer's Representative of CIMB Investment Bank Berhad / CIMB Bank Berhad / CIMB Islamic Bank Berhad? ☐ Yes ☐ No

If yes, please provide the following details:

Name	Designation	Relationship

Are there any trading accounts maintained with CIMB Investment Bank Bhd which are held by persons related to or connected with the Applicant (including but not limited to the spouse of the Applicant, partner (s) of the Applicant or the Applicant's spouse and companies or firms controlled by the Applicant or the Applicant's spouse)? ☐ Yes ☐ No

If yes, please provide the following details:

Name	Designation	Relationship

H. POLITICALLY EXPOSED PERSON

(1) Does the Applicant hold, or has previously held or is actively seeking a position or is being considered for a prominent public position? ☐ Yes ☐ No

If yes, please elaborate Position Held : _____ No. of Years : _____

(2) Does any of the Applicant's immediate family member(s) hold, or has previously held or is actively seeking a position or is being considered for a prominent public position? ☐ Yes ☐ No

If yes, please elaborate

Name of immediate family member (s) : _____

Relationship : _____ NRIC/Passport No : _____ Position Held: _____

I. CALL WARRANTS RISK DISCLOSURE STATEMENT

I understand and accept the following:

1. the purchaser of a call warrant is subject to the risk of losing the full purchase price of the call warrant and all transaction costs;
2. in order to realise any value from a call warrant, it is necessary to sell the call warrants or exercise the call warrants on or before their expiry date;
3. under certain conditions, it may become difficult to sell the call warrants;
4. upon exercise of the call warrants, the issuer may settle its obligations via actual delivery of the underlying assets, in cash or a combination of both depending on the terms of the issue of the call warrants;
5. the placing of contingent orders, such as "stop-loss" or "stop limit" orders, will not necessarily limit my losses to the intended amount. Market conditions may not make it possible to execute such orders;
6. the high degree of leverage that is obtainable from call warrants because of the small initial outlay, can work against me as well as in my favour. The use of the leverage can lead to large losses as well as gain; and
7. this brief statement cannot disclose all risks associated with trading in Call Warrants.

J. MEMORANDUM OF DEPOSIT *(Applicable to Securitised Trading Account only)*

In consideration of you granting and/or continuing to grant or make available to me facilities for the trading in stocks, shares and securities on Bursa Malaysia Securities Berhad and/or any other recognised stock exchange or otherwise, I, the undersigned, hereby pledge, mortgage, charge to you or in your favour all the stocks, shares and securities held from time to time in my trading account which have been fully paid for, in my Central Depository (CDS) account, and/or any nominee/custody account of which I am the beneficiary (hereinafter referred to as the "said Securities"); subject the terms and conditions hereof:

1. I confirm that I am the legal and beneficial owner of the said securities and that I am entitled to pledge, mortgage, charge the said Securities to your Company.

2. The said Securities will be a continuing security to your Company for the general balance of my debts due to your Company, which shall include but not limited to any monies due under my trading account with your Company ("trading account").

3. In the event that any debt remains outstanding in the trading account for more than ten (10) days and where written notice of such debt had been given, your Company may at their sole discretion and at any time thereafter, without giving me/us any further notice, sell such of the said Securities to settle such debts and any excess amount will be credited to my/our account, in such event I shall have no recourse against your Company or your Nominees in respect of any loss that I may suffer arising out of or in relation to or connected with such sale.

4. The shares may be registered by your Company in its name or in the name of your Nominees, held in scripless form in CDS Accounts opened in my/our name, your Company's name or in your Nominees' Pledged Account designated solely for me as the beneficiary. In consideration, I shall also indemnify and keep your Company or your Nominees indemnified against all claims, demands, liabilities, costs and expenses for which your Company or Nominees may be liable, and against all actions, suits, proceedings, claims or demands of any nature whatsoever which may be taken or made against your Company or Nominees or which may be incurred or which may arise directly or indirectly by reason of the registration of the said Securities in the name of your Company and/or the appointment of your Nominees as my/our nominee or by act or omission in relation thereto.

5. Notwithstanding the aforesaid, neither your Company nor your Nominees shall be answerable or responsible for the loss of or damage to or diminution in value of any of the said Securities, however arising, while the same are in the custody, possession or control of your Company or your Nominees.

   Further, while the said Securities are in the custody, possession or control of your company or your Nominees, your Company or your nominees shall use all reasonable efforts to ensure that any rights issue, bonus or dividends (hereinafter called "corporate actions") declared in respect of the said Securities, are subscribed with my/our instruction/advice, received or collected by your Company or your Nominees under advice to me/us. All costs, charges and/or expenses incurred in the course of these corporate actions on the said Securities shall be debited to my/our trading account.

6. I enclose herewith such duly executed transfer or assignments as are necessary to enable the effectual transfer of the said Securities. The names of the transferee, the date of transfer and the consideration are left in blank and I authorise your Company or your Nominees to fill in the aforementioned details in the transfer forms. In the event that further documents are necessary to effectively transfer the said Securities, I shall immediately upon your Company's demand execute such documents.

7. I hereby acknowledge that your Company will not be liable for any loss or damage of the securities deposited under this account unless such loss or damage is due to your Company's negligence or wilful default. In respect of such loss or damage due to negligence or wilful default, your Company will only be liable for the incidental replacement cost which are confined to the cost of advertisement, scrip fees or any other reasonable costs related to the replacement of the physical share certificates only where appropriate and does not include or oblige you to buy back the securities for me/us on the Bursa Securities. The replacement securities shall be returned to me/us upon your Company receiving of the same from the share registrar.

8. I hereby authorise your Company, in the event of the sales of the said Securities, to deliver the same to the purchaser or the legal representative and to credit the proceeds of sales to my/our account with you to settle any outstanding debts due to you.

9. The said Securities and any cash deposited by me/us with your Company shall at all times remain my/our assets and property and shall not under any circumstances whatsoever cease to be my/our assets and property including without limitation the liquidation, receivership, judicial management, winding up of the Company or any other proceedings related to the insolvency of the Company.

10. Every notice, demand, certificate or other communication given or made by your Company to me/us shall be deemed to be given and received if sent to me/us at the address or facsimile number provided by me/us or such other address or facsimile number as may from time to time be notified to your Company by me/us and your Company shall not be responsible for the consequence of any notice, demand, certificate or other communication not being received by me/us.

11. Any notice, demand, certificate or other communication delivered personally shall be deemed to be given and received at the time of such delivery. Any notice, demand, certificate or other communication despatched by registered letter shall be deemed to have been given and received 48 hours after posting. Any notice, demand, certificate or other communication transmitted by telex or facsimile transmission shall be deemed to have been given and received at the time of transmission and any notice, demand, certificate or other communication sent by cable shall be deemed to have been given 24 hours after despatch. The facsimile transmission report shall be prima facie evidence of the act, date and time of transmission.

K. TERMS AND CONDITIONS

The Applicant (hereafter referred to as 'I', 'me' or 'my') hereby declares, confirms, acknowledges, authorises and agrees with CIMB Investment Bank Berhad (hereafter referred to as 'you' or your') as follows:

General Terms and Conditions Applicable to All Trading Accounts

1. undertake to abide by all statutory enactments, rules, regulations, by-laws, directives of Bursa Malaysia Securities Berhad (Bursa Securities), any other stock exchanges and/or any other relevant authority and any subsequent new statutory enactments, rules or regulations, amendments or revisions that may be from time to time brought into force or imposed;

2. all transactions by you on my behalf shall be subject to the applicable constitution, by-laws, rules, regulations, customs, usage, rulings and interpretations ("Rules") of the relevant stock exchanges on which the non-Ringgit securities are listed and its clearing organisation on which such transactions are executed or cleared by you or your agents or any of its affiliates for my account, to all applicable Rules of governmental/foreign government authorities and self-regulatory organisations and to all applicable laws and regulations promulgated thereunder. You shall not be liable to me as a result of any action taken by you or your agents or any of its affiliates to comply with any such Rules, law or regulation, including, without limitation, any liquidation, in whole or in part, of my positions or any other action taken in the event that any stock exchanges declares an emergency;

3. declare that the information given herein is true and correct and that I have not withheld any material fact or information from you. I authorise you to verify, in any manner with any third party, the information furnished herein or from time to time as you deem fit and I further undertake to furnish you promptly with such further additional and/or material change of information as you require at any time or from time to time;

   I also authorise you to make any checks and/or obtain any information and/or confirmation, with or from any credit reference agencies, and/or from any financial institutions, on me or any other person, individual and/or entity as you may deem fit, for any purposes which you deem fit.

4. declare that I have not been adjudged a bankrupt and there is no pending bankruptcy proceedings against me as at the date hereof and I am not a defaulter on Bursa Securities Defaulters List;

5. agree that you may have the absolute discretion to close or suspend my account without giving any reason whatsoever (including but not limited to the non-trading nature of my account, amounts owing to you or it being dormant);

6. acknowledge and agree that I will always abide by all terms and conditions imposed by you relating to the services extended to me herein and my account and that you may at any time and from time to time impose or vary such other terms and conditions in your sole and absolute discretion. Upon the imposition or amendment being posted by you on your website ("the Site") or being notified to me via the mail, notice of the same shall be deemed to have been effected at the time when the notice is posted on the Site or within seven (7) days of mailing of the notice (as the case may be).

   By my continuing to trade or give any order(s) for trade subsequent to the effective date of notice, I shall be deemed to have agreed to and accepted the new or amended terms and conditions imposed by you whereof these provisions shall be binding upon me from the date of posting. The relevant provisions of this Agreement shall thereafter be deemed to have been amended, modified, supplemented and/or varied accordingly and shall be read and construed as if such amendments, modification, supplements and/or variations had been incorporated in and had formed part of this Agreement at the time of execution hereof;

7. represent and warrant that I have good title to such shares, stocks or securities that I may sell through you and undertake to promptly deliver to you documents of title in respect of securities sold by me or on my behalf;

8. undertake to make immediate payment to you in respect of securities purchased by me or on my behalf and to pay an amount in advance or security deposit if required for such purchases or in connection with my account;

9. authorise you in your absolute discretion to carry out such "selling-out" or "buying-in" of stocks, shares or securities to clear my account position and indemnify you in full against all losses, costs and expenses incurred resulting (directly or indirectly) from the above transactions executed by you on my behalf;

10. agree and undertake to settle immediately all sums of money due on contra losses or other monies howsoever owing under my account and authorise you to utilise and set-off any contra profit/gain or proceeds from any sales or monies due to me towards payment or settlement of my liabilities incurred under any accounts maintained with you and or with Bumiputra-Commerce Holdings Berhad and its group of companies. In this regard, you shall be entitled (but not obliged) to make any set-off from my account prior to actual payment by me of sums owing to you;

11. agree and undertake to pay you promptly interest costs and all charges including late payment charges at such rate(s) determined by you on the outstanding debit balance of my account. I shall pay all fees, service fees, commission and other charges relating to the transactions which you shall determine and impose from time to time, including legal fees incurred by you on a solicitor and client basis in the enforcement of any of my obligations and liabilities;

12. agree that you shall not be responsible or liable for any losses or damages (including any lost profits, lost savings or other consequential, special or indirect damages) as a result of any act of God, computer-breakdown interruptions omission errors or delays occurring in the electronic transmission, modem connection, act of public enemy, war, insurgency riot, labour disputes, strike, power failure, any act or omission of your support or solutions partners or any other disturbances arising out of matters or through causes/circumstances beyond your control;

13. agree that I shall not hold you or any of your officers, employees or agents responsible or liable for whatever losses incurred as a result of the acts, representation and/or omission of my dealer's representative in carrying out his/her duties in connection with my account;

14. agree that all orders made through the telephone or the internet trading facilities shall be deemed to be confirmed and binding on me without any requirement to furnish proof to you. In this regard, you may operate my account and execute trades upon receipt of either my oral or written instructions believed by you to be authentic or genuine and to have been given by such one or more person(s) as notified by me from time to time in writing and you shall not be made responsible or liable for any loss that may result from unauthorised instructions. You are entitled (but not obliged) to seek further evidence to confirm or verify the authenticity of any instructions given or purported to be given by me, without incurring any liability in that respect;

15. agree that you shall have the right at any time to refuse to act on my behalf, refrain from executing my orders or limit the purchases or sales ordered by me without having to disclose any reason whatsoever for your refusal to act;

16. authorise you to deal in any manner including but not limited to sale or disposal of the whole or part of the stocks/shares/securities pledged to you or howsoever held or maintained under or in relation to my account (including my CDS account) including without limitation to the utilisation of all or any cash or securities standing to the credit of my account at any time without notice to me and utilise the proceeds to set off and discharge any or all my liabilities and obligations due and owing to you. I further agree that you shall not be liable for any claims whether in contract, tort or otherwise, demands, actions or proceedings, losses and expenses including legal costs and all other liabilities of whatsoever nature or description which may be incurred or suffered by me arising from the sales of the said stocks/shares/securities.

    I also agree that you may at your absolute discretion refuse to act on my instruction to effect transfer/withdrawal of securities held in my CDS account in the event there is an outstanding debt due to you in my trading account;

17. undertake to confirm the accuracy of all personal details and other particulars within fourteen (14) days of notice by you that my account has been first opened and in all other cases, promptly as and when requested by you;

18. declare and agree that subject to paragraph 6 above, all communication, notices, demands or other documents required to be given or supplied may be given to me or my dealer's representative by your authorised officer/ representative or solicitor and all such communications, notices and demands shall be deemed to be validly served if delivered by hand or sent by e-mail, telex, facsimile, courier or by post to my address as stated in the application form or last known address;

19. agree that the failure or delay by you to insist on compliance with any of these undertakings, terms and conditions or any continued course of such conduct by you shall not be construed or constituted as a waiver or relinquishment generally or specifically by you of any rights, power, privileges or remedies accruing to you;

20. declare that if any undertakings, terms and conditions herein contained, shall be held to be invalid, unenforceable, illegal or otherwise, the invalidity, unenforceability and illegality shall not affect or impair the remaining terms and conditions herein;

21. acknowledge that all provisions of this Agreement are to survive any changes or successions in my business/organisation whether by merger, consolidation or otherwise and acknowledge that all provisions of this Agreement together with any liabilities incurred by me hereunder shall be binding upon all my heirs, executors, administrators, personal representatives, successors-in-title, receivers, trustees in bankruptcy and assignees;

22. confirm that I shall not assign any rights, titles or interests to my account, this Agreement or under the services extended herein to any party without your prior written consent;

23. declare that all the agreements and undertakings herein contained and the rights and obligations therefrom shall be governed by and construed in all respects in accordance with the laws of Malaysia and I agree to submit to jurisdiction of the court of Malaysia;

24. agree to fully and effectively indemnify you and hold you harmless from and against and in respect of any and all losses, liabilities, cost, charges and expenses (including but not limited to solicitors fees on a solicitor and Client basis), claims, demands, action and proceedings whatsoever which may be taken against or incurred or sustained by you directly or indirectly from or by reason of or in relation to or arising from or in connection with (i) the use of my account for trading in Ringgit or non-Ringgit securities and/ or (ii) breach or violation of the terms and conditions herein or any third party rights, including but not limited to any infringement of Intellectual Property rights. My obligation to indemnify you shall survive the termination of this Agreement;

25. agree that you are entitled to terminate my account, the services extended herein and this Agreement:
    (a) at any time by prior notice of two (2) trading days; or
    (b) forthwith in the event of breach or potential breach by me of any terms herein or upon default or potential default of my obligations hereunder, without notice to me.

26. agree that you (including your officers, employees, agents or representative) are irrevocably authorised to furnish, transfer or disclose at your sole and absolute discretion any or all information in relation to or in connection with me and/or my account under this Agreement at any time and from time to time:
    (a) to any body or authority to whom you are related to or associated with including but not limited to all other companies however which are or which in the future may be associated or related with each other within the Bumiputra-Commerce Holdings Berhad group of companies;
    (b) to the Central Credit Bureau of Bank Negara Malaysia, Bursa Securities, Securities Commission or any other statutory or regulatory authority to whom you are required to make such disclosure;
    (c) to foreign authorities as a result of my dealing in securities that are listed and quoted on selected foreign stock exchanges;
    (d) to your auditors, legal counsels and other professional advisors;
    (e) to any assignee or potential assignee or other person purporting to enter into contractual arrangements with you in relation to this Agreement;
    (f) to such other person(s) authorised by you for confidential use in connection with or arising out of the operation of any accounts maintained with you (including but not limited to provision of information relating to data processing, statistical and risk analysis purposes);
    (g) to any person pursuant to any written law or order of any court of competent jurisdiction; or
    (h) to anyone you deem fit in your interest to do so;

AND I hereby expressly consent to such disclosure and agree that I shall not hold you, any of your officers, employees, agents or representative responsible or liable for disclosure of such information whether by reason of any misstatement, error, negligence, omission, delay or any matter in connection thereto whatsoever and whether before on or after the date of this Agreement;

27. you are irrevocably authorised to make enquiries and/or to request and receive ad-hoc statements of account in respect of my CDS account maintained with you as an Authorised Depository Agent, as and when you shall see fit and/or as deemed necessary by you in your absolute discretion and to disclose my balance enquiries on my CDS account for purposes of my trading transactions to my dealer's representative without the need to seek my consent;

28. unless otherwise disclosed in writing, I hereby confirm that I am the beneficial owner of my account, am acting for myself and not as nominee, custodian, trustee and or for and on behalf of any other person;

Specific Terms and Conditions Applicable to Online Trading Account

29. undertake to safeguard any and all user names, passwords or other access codes ("Security Features") provided by you; and you may rightfully assume that any person using the Site with my user name and password is either me or is so authorised to act for me. In this regard, I agree that no claims shall be made by me or on my behalf in respect of any losses, costs and expense incurred by me as a result of such unauthorised usage of Security Features;

30. acknowledge that my use of some Links (as defined below) may be governed by additional terms and conditions. In the event I choose to visit or view any other website established through these Links, those additional terms and conditions:

    (a) will apply to my use of such Links in addition to these terms and conditions; and
    (b) will prevail over these terms and conditions to the extent of any inconsistency but only to the extent of those other websites.

    I further agree that:

    (i) you may (in your sole discretion) only establish a Link for me to access into the Third Party Content, which shall be on another website;
    (ii) you shall at no time be obliged to edit or manage (except to provide the Link) the Third Party Content nor verify the accuracy thereof; and
    (iii) you shall be entitled to exclude any liability in respect of the Third Party Content by the automatic appearance of an express disclaimer to that effect on the Site.

    "Link" here means any and all means by which one web page may permit its users/Visitors to connect to or view another web page, including, by creating hypertext, logo or other graphical links or by "framing" the Content of the other web page within the window or frame of a browser or other application.

    "Visitors" means any visitor, user, subscriber or viewer of the i*Trade@CIMB Portal.

    "Third Party Content" means any other information or content provided by any party other than you on i*Trade@CIMB.

31. agree and covenant that I shall not:

    (a) modify, reproduce or create in any manner any derivative works of the content in, under or to the Site for use, transmission, distribution or display on the Site or any other websites without your prior written consent;
    (b) retransmit, disseminate, sell, distribute, publish, broadcast, circulate or commercially exploit the information contained in, on or under the Site in any manner whatsoever without your prior written consent;
    (c) use the information contained on the Site for any illegal purposes or in such a manner as to encourage illegal activities;

32. agree to keep all information relating to the services extended to me herein (including any reports sent to me by you) secure and confidential and not allow any person to have access to them other than your authorised personnel who require such access to operate the services extended to me herein;

33. acknowledge that you are the owner of all copyright, designs, logos, trade names, trademarks, service marks and all other intellectual property (collectively "Intellectual Property") in, under or to the services extended to me herein, the Site and the content contained in the Site which shall at all times remain vested in you;

34. confirm that I do not own any Intellectual Property right belonging to you and that nothing in this Agreement nor through the usage of the services extended to me herein shall confer any right, title or interest to the Intellectual Property in my favour;

35. agree that I will not tamper with nor do anything that will infringe your rights to the Intellectual Property and shall safeguard and protect the Intellectual Property at all times;

Specific Terms and Conditions Applicable to Cross Border Securities Trading Via Existing Trading Account

36. that my trading in securities listed on foreign exchanges ("Cross Border Securities Trading") shall be conducted via your preferred foreign counter party. I further understand and acknowledge that any information displayed on the third party website shall not be applicable to my Cross Border Securities Trading activities. For the avoidance of doubt, I shall all times only refer to the information and Frequently Asked Questions ("FAQs") on my Cross Border Trading Options at www.itradecimb.com;

37. that I shall be bound by any other terms and conditions of agreements executed between you and your foreign counter party (ies) in relation to services rendered to facilitate my Cross Border Securities Trading and shall also read and fully understand your online FAQs at www.itradecimb.com before commencing any Cross Border Securities Trading activities. In relation to internet trading facilities, you may, in your absolute discretion, determine and vary the frequency, manner of use or availability thereof to me from time to time;

38. you may in your absolute discretion determine and vary the available limit based on the proportionate ratio determined by you from my approved limit or my securities deposited and maintained with you for my dealing in Cross Border Securities Trading through conventional means or the internet trading facilities, as the case may be. I further agree that you shall have the right at any time to refuse my orders or limit the purchases/sales given by me;

39. undertake to pay you promptly any fees or other charges imposed by any other stock exchanges or clearing organization; any taxes imposed by any competent authority on any accounts opened or transaction effected for me; and any fines or other penalties imposed by any competent authority except to the extent that such fines or other penalties may be imposed due to your gross negligence or wilful misconduct;

40. understand and acknowledge that any trading recommendations and market or other information communicated by you to me are incidental to the provision of services by you to me under the trading terms and do not constitute an offer to sell or the solicitation of an offer to buy any securities whether listed on Bursa Securities or any other stock exchanges. Such recommendations and information although based upon information obtained from sources believed by you to be reliable, may be incomplete, may not have been verified and may be changed without notice to me. No representation, warranty or guarantee is made by you as to the accuracy or completeness of any market or other information or trading recommendations furnished to me or as to the tax consequences of my transactions;

Specific Terms and Conditions Applicable to Day Trade Facility

41. specific terms and conditions including but not limited to brokerage rates applicable to Day Trade Facility involving trading of a particular securities where the outstanding purchase positions are settled against sale positions of the same securities and where the purchase and sale transactions are transacted on the same date effected via phone or i*Trade@CIMB internet orders or any other mode are as set out or stipulated in the Rules of Bursa Securities which may be varied or amended from time to time of which I have read and fully understood;

Specific Terms and Conditions Applicable to Securitised Trading Account

42. collateral must be deposited with you and shall be of a type and amount acceptable to you. The trading limit shall depend on the amount of the collateral deposited provided always that you may impose a maximum limit for trading;

43. you may cap or discount the value of shares (or other securities) provided as collateral for the purpose of determining the trading limit;

44. to provide and deposit (at my cost and expense) additional collateral at any time upon your request, together with all required documents (e.g. duly completed and valid transfer forms, etc.);

45. you may suspend, withdraw or terminate the Securitised Trading Account and release such suspension at any time at your sole and absolute discretion;

46. where any amount outstanding or owing is not settled promptly (whether demanded or not) collateral shall be utilised to settle the amount outstanding or owing. Utilisation/realisation of collateral shall be in the priority as determined by you, and collateral will be realised to the extent of the amount deemed required by you;

Specific Terms and Conditions Applicable to Islamic Broking Services

47. in relation to the Islamic Broking Services ("IBS"), I acknowledge that IBS is based on Shariah principles and that you will only deal for us in Shariah compliant securities approved by the Shariah Advisory Council of the Securities Commission. You shall not be obliged to place any surplus funds in a Mudharabah account in the absence of my specific written instructions;

48. item 11 of the terms and conditions contained herein shall not be applicable to IBS and shall be substituted by item 48 (i) below:

    (i) I agree and undertake to pay you promptly costs and all charges including Ta'widh (compensation) on any outstanding amount payable to you at the rate or in the manner prescribed by the Shariah Advisory Council of the Securities Commission of Malaysia. I shall pay all fees, service fees, commission and other charges relating to the transactions which you shall determine and impose from time to time, including legal fees incurred by you on a solicitor and client basis in the enforcement of any of my obligations and liabilities.

Interpretation of Provisions Applicable to All Accounts

49. in the event of any inconsistency between the General Terms and Conditions and the Specific Terms and Conditions, the provisions which on interpretation are most favorable to you shall prevail;

50. words in the singular number only shall include the plural number and vice versa.

L. PAYMENT INSTRUCTION

I hereby request that all payments (including but not limited to sales proceeds and credits) due to me from CIMB Investment Bank Berhad from time to time under my trading accounts opened with you be made in the following manner:

☐ credit directly into my *CIMB Bank Berhad / CIMB Islamic Bank Berhad Account No. ☐☐☐☐☐☐☐☐☐☐☐☐☐☐☐☐

(Please enclose a photocopy of the Applicant's Passbook/Latest Bank Statement for verification purposes)
** Delete whichever is not applicable*

☐ by cheque(s) and hereby authorise my Dealer's Representative/Authorised Officer of CIMB Bank Berhad to collect the said cheque(s) due to me from time to time.

☐ credit directly into my trust account maintained with you and further agree that you shall have the absolute discretion to determine whether any interest is to be paid.

In consideration of you agreeing to this request, I hereby agree:

1. to refund to CIMB Investment Bank Berhad of any payments wrongly made to me or wrongly credited into the above mentioned bank or trust account;
2. not to hold you responsible for any losses arising thereof and undertake to indemnify you at all times against all claims, losses or expenses incurred by you in connection with this instruction; and
3. the above payment instruction shall remain in force until further notice by me in writing provided always that CIMB Investment Bank Berhad shall be entitled to with or without prior written notice to me and at its sole and absolute discretion vary any of the above mode or manner of payment to me.

M. DECLARATION BY APPLICANT

By signing this Account Application Form, I hereby declare/agree/undertake that:

1. I am not under eighteen (18) years of age;
2. I am not in the employment of another Participating Organisation of Bursa Malaysia Securities Berhad;
3. the signatures below shall also be the specimen signatures for all communications, instructions and transactions requiring my signature;
4. I have read, understood and agreed to comply with the Terms and Conditions, including Call Warrant Risk Disclosure Statement, as set out under part I to K of this Application Form, including such additional amendments or terms and conditions as may be made from time to time;
5. Under Rule 404.3(7)(a) of the Rules of Bursa Malaysia Securities Berhad, I do solemnly declare that the dealings in securities in respect of my trading account are/shall be carried out

   ☐ for me as principal.

   ☐ for and on behalf of the party(ies) set out below, from whom, through whom or on whose behalf the securities are to be dealt with.

Particulars

Name of party(ies) concerned : _____

Company / NRIC No. : _____

Address / Registered Address : _____

6. Applicable for Cross Border Securities Trading only (Please tick where applicable)

   ☐ I do not have domestic ringgit credit facilities as defined under the Exchange Control Notices of Bank Negara Malaysia (BNM).

   ☐ I have domestic ringgit credit facilities as defined under the Exchange Control Notices of BNM and I further declare that I am fully aware of the exchange control regulations imposed by BNM and agree that it is my responsibility to ensure that my investments abroad at all times shall be within the limit(s) imposed by BNM from time to time.

And I make this solemn declaration conscientiously believing the same to be true.

Signature Of Applicant	*Signature Of Dealer's Representative / Witness / Notary Public
Name:	Name:
New NRIC/Passport No.:	New NRIC/Passport No.:
Date:	Date:
	Staff ID & Branch Code : Affixation of Bank's Rubber Stamp (For Use of CIMB Bank Berhad Only)

** Delete whichever is not applicable*

N. TO BE COMPLETED BY DEALER'S REPRESENTATIVE/AUTHORISED OFFICER OF CIMB BANK BERHAD

Proposed Trading Limit (RM)		Proposed Ratio For	
		Trading on Bursa Securities (%)	Trading on Other Exchanges (%)
Direct Trading Account			
Securitised Account - Direct			
Securitised Account - Nominee			

Type of Account	BFE Short Name	Proposed Ratio For	
		Phone Orders (%)	Online Trades (%)
Direct Trading Account			
Securitised Account - Direct			
Securitised Account - Nominee			

Sales Person :	Day Trade Facility : Yes / No	Rate :

Additional Information		
How do I know the Applicant / Name of Introducer	:	
No. of years I know the Applicant	:	Years
Existing trading limit with other broker	:	RM Name of Broker:
Trading experience with client	:	
Other relevant information to justify the proposed limit	:	
Cash / shares to be deposited		Cash: RM Shares: RM
Please provide counter & quantity if any	:	

I hereby

1. request CIMB to allow the Applicant to open a trading account with the Company.

2. confirm that the information given by me above is true and I have not withheld any information which might prejudice this application; where the Applicant is unable to read and understand the provisions (including the rights, covenants, undertakings and obligations of the Applicant) as contained in the application form, I have distinctly, clearly and audibly translated the same for the Applicant into the …… language / dialect which is the language / dialect understood by the Applicant, and the Applicant has appeared to clearly understand the same.

3. confirm that signature on page 8 is that of the Applicant and I am aware that the Applicant is required to comply with all the terms and conditions accompanying this application form which CIMB may vary from time to time at its absolute discretion.

4. undertake to indemnify CIMB against any losses, damages, debts, charges and all other costs and expenses whatsoever incurred or suffered or which CIMB may incur or suffer in relation to CIMB opening the account of this Applicant and the subsequent operation thereof.

Dealer's Representative/ Authorised Officer of CIMB Bank Berhad**

Name :

NRIC No. :

Date :

** Applicable to CIMB Bank Berhad Branch Broking Only

O. FOR OFFICE USE ONLY	
Call Centre	Date Received :
BrokerLink Code:	Checked By /Date:

Data Management	
Checklist	✓
Application Form duly completed and duly signed by client & Dealer's Representative (DR) / Authorised Officer of CIMB Bank Berhad (AO)	
Personal Data	
Employment Data	
Rule 404.3(7) - Client's Disclosure	
NRIC/Passport/Authority Card duly certified by DR / AO of CIMB Bank Berhad / Notary Public / etc	
Proof of Income	
Client's Address Verified Against Address of DR / AO	

Bursa Defaulter	: Yes / No	Dealer Code	:
AML / CFT Watch List	: Yes / No	Auto Averaging	: Yes / No

Remarks:

Parent Code	:		Classification	:	
Client Code	:	(Direct)	BFE Account Type	:	(Direct)
	:	(ST)		:	(ST)
Sales Person	:				

Completed & Verified By / Date	:		
Data Entry By / Date	:	Checked By / Date	:

Capital Market Risk Monitoring					
Credit Search	: Yes / No				
Recommended Trading Limit	RM	(Direct)	Approved Trading Limit	RM	(Direct)
	RM	(ST)		RM	(ST)
Recommended By / Date	:		Approved By / Date	:	

Compliance Department
Verified By / Date :